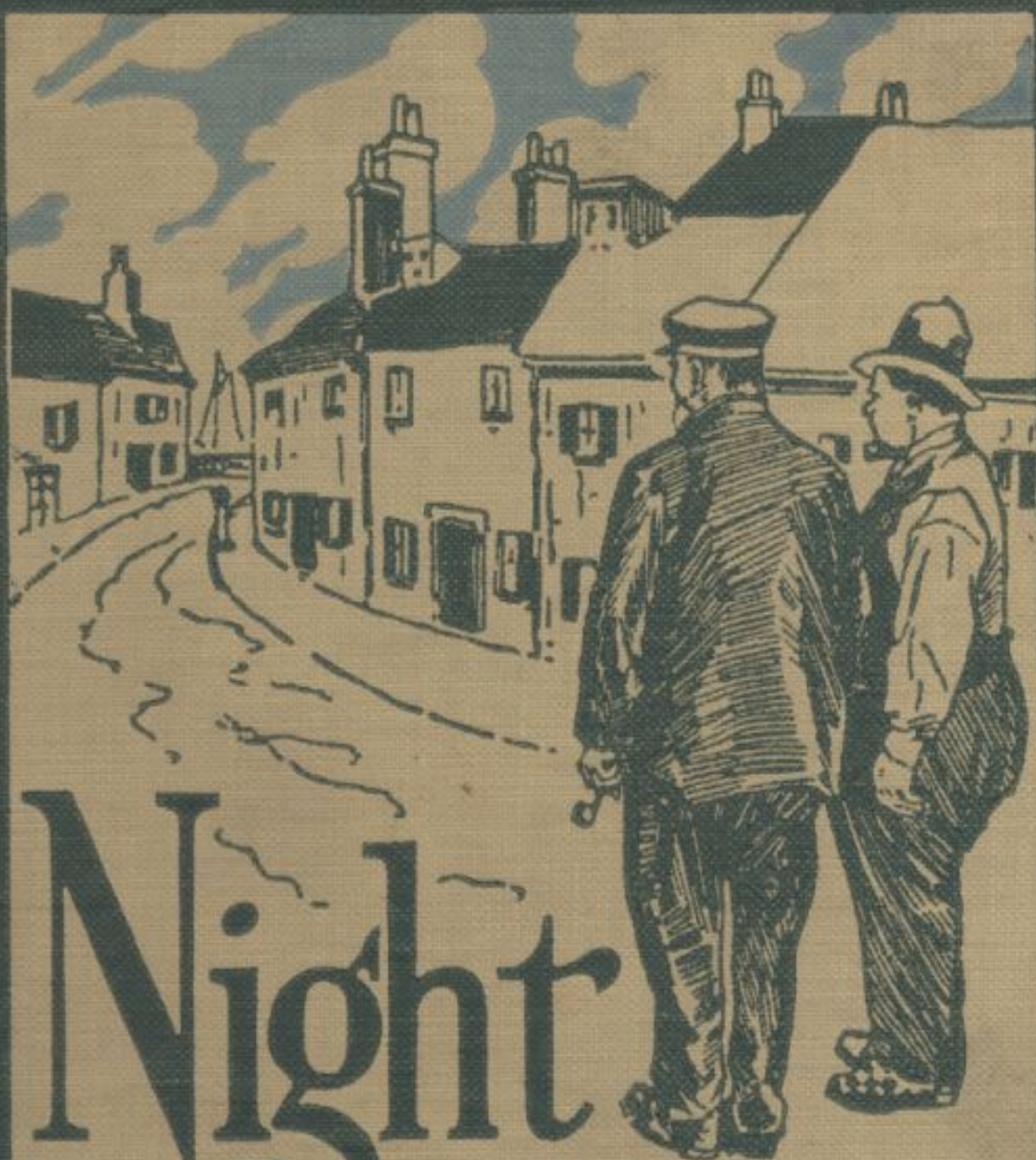


NIGHT
WATCHES

JACOBS



Night Watches

W.W. JACOBS

SCRIBNERS

NIGHT
WATCHES

JACOBS



SCRIBNERS



Night Watches

W.W. JACOBS

The Project Gutenberg eBook of Back to back [Night watches, Part 1.]

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Back to back [Night watches, Part 1.]

Author: W. W. Jacobs

Illustrator: Stanley Davis

Release date: April 1, 2004 [eBook #12151]

Most recently updated: December 14, 2020

Language: English

Other information and formats: www.gutenberg.org/ebooks/12151

Credits: Produced by David Widger

*** START OF THE PROJECT GUTENBERG EBOOK BACK TO BACK
[NIGHT WATCHES, PART 1.] ***

NIGHT WATCHES

BY
W. W. JACOBS

ILLUSTRATED BY STANLEY DAVIS

BACK TO BACK

Mrs. Scutts, concealed behind the curtain, gazed at the cab in uneasy amazement. The cabman clambered down from the box and, opening the door, stood by with his hands extended ready for any help that might be needed. A stranger was the first to alight, and, with his back towards Mrs. Scutts, seemed to be struggling with something in the cab. He placed a dangling hand about his neck and, staggering under the weight, reeled backwards supporting Mr. Scutts, whose other arm was round the neck of a third man. In a flash Mrs. Scutts was at the door.



"Oh, Bill!" she gasped. "And by daylight, too!"

Mr. Scutts raised his head sharply and his lips parted; then his head sank again, and he became a dead weight in the grasp of his assistants.

"He's all right," said one of them, turning to Mrs. Scutts.

A deep groan from Mr. Scutts confirmed the statement.

"What is it?" inquired his wife, anxiously.

"Just a little bit of a railway accident," said one of the strangers. "Train ran into some empty trucks. Nobody hurt—seriously," he added, in response to a terrible and annoyed groan from Mr. Scutts.

With his feet dragging helplessly, Mr. Scutts was conveyed over his own doorstep and placed on the sofa.

"All the others went off home on their own legs," said one of the strangers, reproachfully. "He said he couldn't walk, and he wouldn't go to a hospital."

"Wanted to die at home," declared the sufferer. "I ain't going to be cut about at no 'ospitals."

The two strangers stood by watching him; then they looked at each other.

I don't want—no—'ospitals," gasped Mr. Scutts, "I'm going to have my own doctor."

"Of course the company will pay the doctor's bill," said one of the strangers to Mrs. Scutts or they'll send their own doctor. I expect he'll be all right to-morrow."

"I 'ope so," said Mr. Scutts, "but I don't think it. Thank you for bringing of me 'ome."

He closed his eyes languidly, and kept them closed until the men had departed.

"Can't you walk, Bill?" inquired the tearful Mrs. Scutts.

Her husband shook his head. "You go and fetch the doctor," he said, slowly. "That new one round the corner."

"He looks such a boy," objected Mrs. Scutts.

"You go and fetch 'im," said Mr. Scutts, raising his voice. "D'ye hear!"

"But—" began his wife.

"If I get up to you, my gal," said the forgetful Mr. Scutts, "you'll know it."

"Why, I thought—" said his wife, in surprise.

Mr. Scutts raised himself on the sofa and shook his fist at her. Then, as a tribute to appearances, he sank back and groaned again. Mrs. Scutts, looking somewhat relieved, took her bonnet from a nail and departed.

The examination was long and tedious, but Mr. Scutts, beyond remarking that he felt chilly, made no complaint. He endeavoured, but in vain, to perform the tests suggested, and even did his best to stand, supported by his medical attendant. Self-preservation is the law of Nature, and when Mr. Scutts's legs and back gave way he saw to it that the doctor was underneath.

"We'll have to get you up to bed," said the latter, rising slowly and dusting himself.

Mr. Scutts, who was lying full length on the floor, acquiesced, and sent his wife for some neighbours. One of them was a professional furniture-remover, and, half-way up the narrow stairs, the unfortunate had to remind him that he was dealing with a British working man, and not a piano. Four pairs of hands deposited Mr. Scutts with mathematical precision in the centre of the bed and then proceeded to tuck him in, while Mrs. Scutts drew the sheet in a straight line under his chin.

"Don't look much the matter with 'im," said one of the assistants.

"You can't tell with a face like that," said the furniture-remover. "It's wot you might call a 'appy face. Why, he was 'arf smiling as we, carried 'im up the stairs."

"You're a liar," said Mr. Scutts, opening his eyes.

"All right, mate," said the furniture-remover; "all right. There's no call to get annoyed about it. Good old English pluck, I call it. Where d'you feel the pain?"

"All over," said Mr. Scutts, briefly.

His neighbours regarded him with sympathetic eyes, and then, led by the furniture-remover, filed out of the room on tip-toe. The doctor, with a few parting instructions, also took his departure.

"If you're not better by the morning," he said, pausing at the door, "you must send for your club doctor."

Mr. Scutts, in a feeble voice, thanked him, and lay with a twisted smile on his face listening to his wife's vivid narrative to the little crowd which had collected at the front door. She came back, followed by the next-door neighbour, Mr. James Flynn, whose offers of assistance ranged from carrying Mr. Scutts out pick-a-back when he wanted to take the air, to filling his pipe for him and fetching his beer.

"But I dare say you'll be up and about in a couple o' days," he concluded. "You wouldn't look so well if you'd got anything serious the matter; rosy, fat cheeks and——"

"That'll do," said the indignant invalid. "It's my back that's hurt, not my face."

"I know," said Mr. Flynn, nodding sagely; "but if it was hurt bad your face would be as white as that sheet-whiter."

"The doctor said as he was to be kep' quiet," remarked Mrs. Scutts, sharply.

"Right-o," said Mr. Flynn. "Ta-ta, old pal. Keep your pecker up, and if you want your back rubbed with turps, or anything of that sort, just knock on the wall."

He went, before Mr. Scutts could think of a reply suitable for an invalid and, at the same time, bristling with virility. A sinful and foolish desire to leap out of bed and help Mr. Flynn downstairs made him more rubicund than ever.

He sent for the club doctor next morning, and, pending his arrival, partook of a basin of arrowroot and drank a little beef-tea. A bottle of castor-oil and an empty pill-box on the table by the bedside added a little local colour to the scene.

"Any pain?" inquired the doctor, after an examination in which bony and very cold fingers had played a prominent part.

"Not much pain," said Mr. Scutts. "Don't seem to have no strength in my back."

"Ah!" said the doctor.

"I tried to get up this morning to go to my work," said Mr. Scutts, "but I can't stand! couldn't get out of bed."

"Fearfully upset, he was, pore dear," testified Mrs. Scutts. "He can't bear losing a day. I s'pose—I s'pose the railway company will 'ave to do something if it's serious, won't they, sir?"

"Nothing to do with me," said the doctor. "I'll put him on the club for a few days; I expect he will be all right soon. He's got a healthy colour—a very healthy colour."

Mr. Scutts waited until he had left the house and then made a few remarks on the colour question that for impurity of English and strength of diction have probably never been surpassed.

A second visitor that day came after dinner—a tall man in a frock-coat, bearing in his hand a silk hat, which, after a careful survey of the room, he hung on a knob of the bedpost.

"Mr. Scutts?" he inquired, bowing.

"That's me," said Mr. Scutts, in a feeble voice.

"I've called from the railway company," said the stranger. "We have seen now all those who left their names and addresses on Monday afternoon, and I am glad to say that nobody was really hurt. Nobody."

Mr. Scutts, in a faint voice, said he was glad to hear it.

"Been a wonder if they had," said the other, cheerfully. "Why, even the paint wasn't knocked off the engine. The most serious damage appears to be two top-hats crushed and an umbrella broken."

He leaned over the bed-rail and laughed joyously. Mr. Scutts, through half-closed eyes, gazed at him in silent reproach.

"I don't say that one or two people didn't receive a little bit of a shock to their nerves," said the visitor, thoughtfully. "One lady even stayed in bed next day. However, I made it all right with them. The company is very generous, and although of course there is no legal obligation, they made several of them a present of a few pounds, so that they could go away for a little change, or anything of that sort, to quiet their nerves."

Mr. Scutts, who had been listening with closed eyes, opened them languidly and said, "Oh."

"I gave one gentleman twen-ty pounds!" said the visitor, jingling some coins in his trouser-pocket. "I never saw a man so pleased and grateful in my life. When he signed the receipt for it—I always get them to sign a receipt, so that the company can see that I haven't kept the money for myself—he nearly wept with joy."

"I should think he would," said Mr. Scutts, slowly—"if he wasn't hurt."

"You're the last on my list," said the other, hastily. He produced a slip of paper from his pocket-book and placed it on the small table, with a fountain pen. Then, with a smile that was both tender and playful, he plunged his hand in his pocket and poured a stream of gold on the table.

"What do you say to thir-ty pounds?" he said, in a hushed voice. "Thirty golden goblins?"

"What for?" inquired Mr. Scutts, with a notable lack of interest.

"For—well, to go away for a day or two," said the visitor. "I find you in bed; it may be a cold or a bilious attack; or perhaps you had a little upset of the nerves when the trains kissed each other."

"I'm in bed—because—I can't walk-or stand," said Mr. Scutts, speaking very distinctly. "I'm on my club, and if as 'ow I get well in a day or two, there's no reason why the company should give me any money. I'm pore, but I'm honest."

"Take my advice as a friend," said the other; "take the money while you can get it."

He nodded significantly at Mr. Scutts and closed one eye. Mr. Scutts closed both of his.

"I 'ad my back hurt in the collision," he said, after a long pause. "I 'ad to be helped 'ome. So far it seems to get worse, but I 'ope for the best."

"Dear me," said the visitor; "how sad! I suppose it has been coming on for a long time. Most of these back cases do. At least all the doctors say so."

"It was done in the collision," said Mr. Scutts, mildly but firmly. "I was as right as rain before then."

The visitor shook his head and smiled. "Ah! you would have great difficulty in proving that," he said, softly; "in fact, speaking as man to man, I don't mind telling you it would be impossible. I'm afraid I'm exceeding my duty, but, as you're the last on my list, suppose—suppose we say forty pounds. Forty! A small fortune."

He added some more gold to the pile on the table, and gently tapped Mr. Scutts's arm with the end of the pen.

"Good afternoon," said the invalid.

The visitor, justly concerned at his lack of intelligence, took a seat on the edge of the bed and spoke to him as a friend and a brother, but in vain. Mr. Scutts reminded him at last that it was medicine-time, after which, pain and weakness permitting, he was going to try to get a little sleep.

"Forty pounds!" he said to his wife, after the official had departed. "Why didn't 'e offer me a bag o' sweets?"

"It's a lot o' money," said Mrs. Scutts, wistfully.

"So's a thousand," said her husband. "I ain't going to 'ave my back broke for nothing, I can tell you. Now, you keep that mouth o' yours shut, and if I get it, you shall 'ave a new pair o' boots."

"A thousand!" exclaimed the startled Mrs. Scutts. "Have you took leave of your senses, or what?"

"I read a case in the paper where a man got it," said Mr. Scutts. "He 'ad his back 'urt too, pore chap. How would you like to lay on your back all your life for a thousand pounds?"

"Will you 'ave to lay abed all your life?" inquired his wife, staring.

"Wait till I get the money," said Mr. Scutts; "then I might be able to tell you better."

He gazed wistfully at the window. It was late October, but the sun shone and the air was clear. The sound of traffic and cheerful voices ascended from the little street. To Mr. Scutts it all seemed to be a part of a distant past.

"If that chap comes round to-morrow and offers me five hundred," he said, slowly, "I don't know as I won't take it. I'm sick of this mouldy bed."

He waited expectantly next day, but nothing happened, and after a week of bed he began to realize that the job might be a long one. The monotony, to a man of his active habits, became almost intolerable, and the narrated adventures of Mr. James Flynn, his only caller, filled him with an uncontrollable longing to be up and doing.

The fine weather went, and Mr. Scutts, in his tumbled bed, lay watching the rain beating softly on the window-panes. Then one morning he awoke to the darkness of a London fog.

"It gets worse and worse," said Mrs. Scutts, as she returned home in the afternoon with a relish for his tea. "Can't see your 'and before your face."

Mr. Scutts looked thoughtful. He ate his tea in silence, and after he had finished lit his pipe and sat up in bed smoking.

"Penny for your thoughts," said his wife.

"I'm going out," said Mr. Scutts, in a voice that defied opposition. "I'm going to 'ave a walk, and when I'm far enough away I'm going to 'ave one or two drinks. I believe this fog is sent a-purpose to save my life."

Mrs. Scutts remonstrated, but in vain, and at half-past six the invalid, with his cap over his eyes and a large scarf tied round the lower part of his face, listened for a moment at his front door and then disappeared in the fog.

Left to herself, Mrs. Scutts returned to the bedroom and, poking the tiny fire into a blaze, sat and pondered over the willfulness of men.

She was awakened from a doze by a knocking at the street-door. It was just eight o'clock, and, inwardly congratulating her husband on his return to common sense and home, she went down and opened it. Two tall men in silk hats entered the room.

"Mrs. Scutts?" said one of them.

Mrs. Scutts, in a dazed fashion, nodded.

"We have come to see your husband," said the intruder. "I am a doctor."

The panic-stricken Mrs. Scutts tried in vain to think.

"He-he's asleep," she said, at last.

"Doesn't matter," said the doctor.

"Not a bit," said his companion.

"You—you can't see him," protested Mrs. Scutts. "He ain't to be seen."

"He'd be sorry to miss me," said the doctor, eyeing her keenly as she stood on guard by the inner door. "I suppose he's at home?"

"Of course," said Mrs. Scutts, stammering and flushing. "Why, the pore man can't stir from his bed."

"Well, I'll just peep in at the door, then," said the doctor. "I won't wake him. You can't object to that. If you do—"

Mrs. Scutts's head began to swim. "I'll go up and see whether he's awake," she said.

She closed the door on them and stood with her hand to her throat, thinking. Then, instead of going upstairs, she passed into the yard and, stepping over the fence, opened Mr. Flynn's back door.

"Halloa!" said that gentleman, who was standing in the scullery removing mud from his boots. "What's up?"

In a frenzied gabble Mrs. Scutts told him. "You must be 'im," she said, clutching him by the coat and dragging him towards the door. "They've never seen 'im, and they won't know the difference."

"But—" exclaimed the astonished James.

"Quick!" she said, sharply. "Go into the back room and undress, then nip into his room and get into bed. And mind, be fast asleep all the time."

Still holding the bewildered Mr. Flynn by the coat, she led him into the house and waved him upstairs, and stood below listening until a slight creaking of the bed announced that he had obeyed orders. Then she entered the parlour.

"He's fast asleep," she said, softly; "and mind, I won't 'ave him disturbed. It's the first real sleep he's 'ad for nearly a week. If you promise not to wake 'im you may just have a peep."

"We won't disturb him," said the doctor, and, followed by his companion, noiselessly ascended the stairs and peeped into the room. Mr. Flynn was fast asleep, and not a muscle moved as the two men approached the bed on tip-toe and stood looking at him. The doctor turned after a minute and led the way out of the room.

"We'll call again," he said, softly.

"Yes, sir," said Mrs. Scutts. "When?"

The doctor and his companion exchanged glances. "I'm very busy just at present," he said, slowly. "We'll look in some time and take our chance of catching him awake."

Mrs. Scutts bowed them out, and in some perplexity returned to Mr. Flynn. "I don't like the look of 'em," she said, shaking her head. "You'd

better stay in bed till Bill comes 'ome in case they come back."

"Right-o," said the obliging Mr. Flynn. "Just step in and tell my landlady I'm 'aving a chat with Bill."

He lit his pipe and sat up in bed smoking until a knock at the front door at half-past eleven sent him off to sleep again. Mrs. Scutts, who was sitting downstairs, opened it and admitted her husband.

"All serene?" he inquired. "What are you looking like that for? What's up?"

He sat quivering with alarm and rage as she told him, and then, mounting the stairs with a heavy tread, stood gazing in helpless fury at the slumbering form of Mr. James Flynn.

"Get out o' my bed," he said at last, in a choking voice.

"What, Bill!" said Mr. Flynn, opening his eyes.

"Get out o' my bed," repeated the other. "You've made a nice mess of it between you. It's a fine thing if a man can't go out for 'arf a pint without coming home and finding all the riffraff of the neighbourhood in 'is bed."

"Ow's the pore back, Bill?" inquired Mr. Flynn, with tenderness.

Mr. Scutts gurgled at him. "Outside!" he said as soon as he could get his breath.

"Bill," said the voice of Mrs. Scutts, outside the door.

"Halloa," growled her husband.

"He mustn't go," said Mrs. Scutts. "Those gentlemen are coming again, and they think he is you."

"WHAT!" roared the infuriated Mr. Scutts.

"Don't you see? It's me what's got the pore back now, Bill," said Mr. Flynn. "You can't pass yourself off as me, Bill; you ain't good-looking enough."

Mr. Scutts, past speech, raised his clenched fists to the ceiling.

"He'll 'ave to stay in your bed," continued the voice of Mrs. Scutts. "He's got a good 'art, and I know he'll do it; won't you, Jim?"

Mr. Flynn pondered. "Tell my landlady in the morning that I've took your back room," he said. "What a fortunit thing it is I'm out o' work. What are you walking up and down like that for, Bill? Back coming on agin?"

"Then o' course," pursued the voice of Mrs. Scutts, in meditative accents, "there's the club doctor and the other gentleman that knows Bill. They might come at any moment. There's got to be two Bills in bed, so that if one party comes one Bill can nip into the back room, and if the other Bill—party, I mean—comes, the other Bill—you know what I mean!"

Mr. Scutts swore himself faint.

"That's 'ow it is, mate," said Mr. Flynn. "It's no good standing there saying your little piece of poetry to yourself. Take off your clo'es and get to bed like a little man. Now! now! Naughty! Naughty!"

"P'r'aps I oughtn't to 'ave let 'em up, Bill," said his wife; "but I was afraid they'd smell a rat if I didn't. Besides, I was took by surprise."

"You get off to bed," said Mr. Scutts. "Get off to bed while you're safe."

"And get a good night's rest," added the thoughtful Mr. Flynn. "If Bill's back is took bad in the night I'll look after it."

Mr. Scutts turned a threatening face on him. "For two pins—" he began.

"For two pins I'll go back 'ome and stay there," said Mr. Flynn.

He put one muscular leg out of bed, and then, at the earnest request of Mr. Scutts, put it back again. In a few simple, manly words the latter apologized, by putting all the blame on Mrs. Scutts, and, removing his clothes, got into bed.

Wrapped in bedclothes, they passed the following day listening for knocks at the door and playing cards. By evening both men were weary, and

Mr. Scutts made a few pointed remarks concerning dodging doctors and deceitful visitors to which Mr. Flynn listened in silent approval.

"They mightn't come for a week," he said, dismally. "It's all right for you, but where do I come in? Halves?"

Mr. Scutts had a rush of blood to the head.

"You leave it to me, mate," he said, controlling himself by an effort. "If I get ten quid, say, you shall have 'arf."

"And suppose you get more?" demanded the other.

"We'll see," said Mr. Scutts, vaguely.

Mr. Flynn returned to the charge next day, but got no satisfaction. Mr. Scutts preferred to talk instead of the free board and lodging his friend was getting. On the subject of such pay for such work he was almost eloquent.

"I'll bide my time," said Mr. Flynn, darkly. "Treat me fair and I'll treat you fair."

His imprisonment came to an end on the fourth day. There was a knock at the door, and the sound of men's voices, followed by the hurried appearance of Mrs. Scutts.

"It's *Jim's* lot," she said, in a hurried whisper. "I've just come up to get the room ready."

Mr. Scutts took his friend by the hand, and after warmly urging him not to forget the expert instructions he had received concerning his back, slipped into the back room, and, a prey to forebodings, awaited the result.

"Well, he looks better," said the doctor, regarding Mr. Flynn.

"Much better," said his companion.

Mrs. Scutts shook her head. "His pore back don't seem no better, sir," she said in a low voice. "Can't you do something for it?"

"Let me have a look at it," said the doctor. "Undo your shirt."

Mr. Flynn, with slow fingers, fumbled with the button at his neck and looked hard at Mrs. Scutts.

"She can't bear to see me suffer," he said, in a feeble voice, as she left the room.

He bore the examination with the fortitude of an early Christian martyr. In response to inquiries he said he felt as though the mainspring of his back had gone.

"How long since you walked?" inquired the doctor.

"Not since the accident," said Mr. Flynn, firmly.

"Try now," said the doctor.

Mr. Flynn smiled at him reproachfully.

"You can't walk because you think you can't," said the doctor; "that is all. You'll have to be encouraged the same way that a child is. I should like to cure you, and I think I can."

He took a small canvas bag from the other man and opened it. "Forty pounds," he said. "Would you like to count it?"

Mr. Flynn's eyes shone.

"It is all yours," said the doctor, "if you can walk across the room and take it from that gentleman's hand."

"Honour bright?" asked Mr. Flynn, in tremulous tones, as the other man held up the bag and gave him an encouraging smile.

"Honour bright," said the doctor.

With a spring that nearly broke the bed, Mr. Flynn quitted it and snatched the bag, and at the same moment Mrs. Scutts, impelled by a maddened arm, burst into the room.

"Your back!" she moaned. "It'll kill you Get back to bed."

"I'm cured, lovey," said Mr. Flynn, simply.

"His back is as strong as ever," said the doctor, giving it a thump.

Mr. Flynn, who had taken his clothes from a chair and was hastily dressing himself, assented.

"But if you'll wait 'arf a tick I'll walk as far as the corner with you," he said, quickly. "I'd like to make sure it's all right."

He paused at the foot of the stairs and, glancing up at the palid and murderous face of Mr. Scutts, which protruded from the back bedroom, smiled at him rapturously. Then, with a lordly air, he tossed him five pieces of gold.

*** END OF THE PROJECT GUTENBERG EBOOK BACK TO BACK
[NIGHT WATCHES, PART 1.] ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.